

24STCV33924 24STCV33924

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-08-26

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C617%2C08%2F26%2F2026

Source SHA-256: 2846fdd83e94fbb340119e436a14de2ae7a55f65b9cf19b3c457f60628200a79

Case Number: 24STCV33924 Hearing Date: August 26, 2026 Dept: 617

Dept.

617

Date:

8-26-26

Case

#: 24STCV33924

Trial

Date: 1-25-27

LEAVE TO FILE CROSS-COMPLAINT

MOVING

PARTY: Defendant, Dr. Mitra Razipour Chiropractic Group, Inc. dba Natures

Remedy Clinic

RESPONDING

PARTY: Unopposed/Plaintiff, Jane DB Doe

RELIEF

REQUESTED

Motion

for Leave to File Cross-Complaint

SUMMARY

OF ACTION

Plaintiff

Jane DB Doe sued Defendant Dr. Mitra Razipour Chiropractic Group, Inc. dba

Natures Remedy Clinic alleging she was sexually assaulted by a provider

Defendant assigned to her. Plaintiff asserts claims for: (1) Sexual Assault;

(2) Gender Violence; (3) Intentional Infliction of Emotional Distress; (4) Sexual

Harassment; (5) Negligence; (6) Negligent Supervision; (7) Negligent Hiring/Retention;

and (8) Negligent Failure to Warn, Train, or Educate.

RULING: Granted.

Defendant

moves for leave to file a cross-complaint for indemnification against Hernan

Bonilla, claiming that he is the alleged perpetrator of the assault on

Plaintiff. Plaintiff does not oppose the motion. Defendant's motion is granted.

Defendant

is granted leave to file the cross-complaint. A defendant can cross-complain

against a codefendant or a third party not yet a party to the action if the cause of action asserted: (1) "arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him" or (2) "asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Code Civ. Proc., § 428.10, subd. (b).) The indemnification claim arises out of the same alleged assault for which Plaintiff seeks to hold Defendant responsible. Defendant's motion is therefore granted.

Defendant

to separately file the cross-complaint within 10 days of this order.

Defendant

to give notice.